

Standards Governing Exercise of the Zoning Power — Applicant's Responses

City of Lilburn Rezoning Application, page 3 of 6 — "Standards Governing the Exercise of the Zoning Power" Case RZ-2026-___ · 4535, 4537, 4539 and 4541 Arcado Road SW · Parcels 6123 162, 6123 014, 6123 015, 6123 033 · 9.44 acres · R-1 to R-2 Applicant: Mohammed Awad · Date: 2026-09-___

DRAFT for owner and attorney review. The city form provides two lines per criterion; these responses are to be attached as "Applicant's Responses to Standards A–F (attached)" and each entry on the form should read "See attached." The criteria are quoted from the city form. Lilburn Zoning Ordinance 2023-603 §1003-7 states the same six standards in substantially the same words (its item 5 adds "including the future development map and future land use plan map"); the form's reference to "Section 1003-8" and the "2011 Zoning Resolution" appears to be a legacy citation — see the attorney-review note at the end. Items marked VERIFY are not yet confirmed against a primary source.

(A) Whether a proposed rezoning will permit a use that is suitable in view of the use and development of adjacent and nearby property:

Yes. The proposed use is 41 detached, one-story, single-family houses on fee-simple lots — the same use as all 31 privately owned parcels adjoining this land, every one zoned R-1 in the City of Lilburn and developed with a single-family house. The 32nd adjoiner is the Gwinnett County Arcado Road right-of-way. Along the northeast line are 13 King David Manor lots and 4531 Arcado Road (2026 digest values \$292,800 to \$412,500, median \$349,200); along the southwest line, 14 Legends at Parkview lots on Village Green Court and Fieldhouse Circle (\$579,100 to \$894,600, median \$693,500); at the northwest end, three Nantucket Drive lots.

Nearby property already includes the requested district: the Arcado Road Townhomes R-2 zoning lies about 106 feet northeast of the site's front corner. At 4.34 dwelling units per acre of detached houses, the proposal is less intense than that attached-townhome district and only 0.34 du/ac above the R-1 maximum of 4 du/ac. The City recently approved R-2 cottage lots beside R-1 neighborhoods at Annsbury Park (140 lots, under construction) and the Preserve at Killian Hill Phase 3 (24 lots, March 13, 2023).

Suitability is built into the plan: a 20-foot undisturbed buffer on all three shared property lines, reduced only where the entrance curb return meets the county right-of-way; one-story homes with ridges of 18 feet 6 inches and 19 feet 8 inches above finished grade; no lot fronting or driving onto Arcado Road; fiber-cement and brick or stone exteriors; and homes of 1,406 and 1,492 square feet conditioned, expected to price between the two adjoining medians [pricing: VERIFY]. Lilburn Zoning Ordinance 2023-603 §402-1 describes R-2 as intended "primarily" for "detached single-family uses," including "clustered and cottage housing types," located "where there is convenient access to collector streets" — which is this site.

(B) Whether a proposed rezoning will adversely affect the existing use or usability of adjacent or nearby property:

No. Nothing in the proposal changes what any adjoining owner may do, and each potential off-site effect has been designed out or limited.

Traffic. The site's only access is Arcado Road; nothing connects to King David Drive, Village Green Court, Fieldhouse Circle or Nantucket Drive, so the neighbors' streets receive no project traffic. The project adds roughly 12.3 trips in the evening peak hour (ITE Trip Generation Manual, 11th ed., LUC 251, 0.30 per unit × 41 units; 11–16 across published compilations).

Views, light and noise. One-story houses sit behind a 20-foot undisturbed buffer held in a recorded easement; the nearest rear structures — Plan A's patio and Plan B's covered porch — stand 20 feet 6 inches and 20 feet 10 inches from the rear line, outside the buffer. Evergreens will supplement the buffer where vegetation is thin. Lighting will be full-cutoff and directed away from adjoining lots, with none on the pickleball courts.

Stormwater. The 2025 petition raised runoff, erosion and flooding. The site is in FEMA Zone X. Two dry detention and water-quality ponds designed to the Gwinnett County Stormwater Management Manual will hold post-development peak discharge at or below pre-development levels, discharging only to existing drainage courses. The stream head, its 50-foot undisturbed buffer and its 75-foot impervious setback are preserved in a 20,000-square-foot common tract, and water-quality treatment is emphasized because the receiving stream is on Georgia's 2024 303(d) list.

Utilities. Phase 1 uses an 8-inch Gwinnett County sewer main already on the property and extends nothing. Phase 2 needs a short gravity connection and an easement from one Village Green Court owner; a condition offers that Phase 2 not be built without it.

Values and upkeep. Yards, lane, buffers and ponds are maintained by a mandatory homeowners' association [pricing: VERIFY].

(C) Whether the property to be affected by a proposed rezoning has a reasonable economic use as currently zoned:

The property has some economic use under R-1: the two existing houses at 4535 and 4541 Arcado Road can continue as residences, and a conventional R-1 subdivision is possible in principle. What R-1 cannot accommodate is this proposal — and the obstacle is dimensional, not a prohibition on the use.

Ordinance 2023-603 §602 lists "Single-family (cluster-cottage, creative lot configuration)" as a permitted use in R-1 as well as in R-2, so the use itself is already allowed on this land. What R-1 does not supply is a lot to put it on: Table 4.1 states no minimum lot size and no minimum lot width for a cottage home in the R-1 column, so no cottage lot can be created in that district. The 3,000-square-foot, 50-foot-wide cottage lot exists only in R-2. R-1's own dimensional standards — 9,000-square-foot lots at least 80 feet wide — are what forbid the proposal.

Those standards fit this land poorly. The assemblage is a strip about 236 feet wide with a single public frontage. After a street corridor [right-of-way width: VERIFY], roughly 93 feet of depth remains on each side, so an R-1 lot must be about 97 feet wide to reach 9,000 square feet — realistically 25 to 30 two-story houses on a 1,700-foot dead-end street. That layout would generate roughly three times the peak-hour traffic of the cottage plan (ITE 11th ed. LUC 210) and would add school-age children to a cluster in which the July 2025 School Impact Analysis reported Camp Creek Elementary and Parkview High above capacity [VERIFY]. It would not deliver the one-story, age-restricted, visitable housing that the 2024 Comprehensive Plan's work item H.03 (p. 47) asks the City to incentivize "within all medium and high density residential districts" — and R-2 is that district.

(D) Whether the proposed rezoning will result in a use which will or could cause an excessive or burdensome use of existing streets, transportation facilities, utilities, or schools:

No, on each count.

Streets. Under ITE Trip Generation Manual, 11th ed., LUC 251, 41 homes generate about 12.3 evening peak-hour trips at 0.30 per unit (11–16 across published compilations) and 152–177 daily. Arcado Road carried 14,800 vehicles per day at GDOT station 135-6689 in 2017, older than the two-year rule in Gwinnett DOT's Traffic Impact Study Guidelines (2023), so new 24-hour counts will be obtained. Those Guidelines require a study with every zoning application and exempt only residential projects of seven lots or fewer, so a Level 1 study is being prepared; turn-lane and operations analyses begin at Level 2. No left-turn lane is warranted; the threshold on a 2-lane, 35 mph road is 75 lots. The entrance sits 251 feet from the Arcadia Place centerline against the 244-foot minimum of Gwinnett UDO Table 900.3; 390 feet of sight distance is required (Table 900.2; survey to confirm).

Utilities. An 8-inch Gwinnett County gravity sewer main already crosses Parcel 6123 033 (manhole invert 927.13, about 270 feet in); Phase 1's 24 lots drain to it with no extension. Phase 2's 17 lots will be served only by a gravity connection of about 478 feet, 178 feet off site, to the Legends at Parkview main; a condition bars any private pump station, force main or grinder-pump system, which Gwinnett DWR's subdivision policy does not permit. The 1,754-foot dead-end lane goes to the Gwinnett County Fire Marshal for special approval under IFC 2024 as modified by Ga. Comp. R. & Regs. 120-3-3-.04, Appendix D103.4; sprinklers are offered voluntarily, Georgia's Appendix D107.1 requiring a second access road only above 120 units.

Schools. As housing for older persons under 42 U.S.C. §3607(b)(2)(C), the community generates zero public-school students in the Camp Creek, Trickum and Parkview cluster [VERIFY the 2025 figures].

(E) Whether the proposed rezoning is in conformity with the policy and intent of the Land Use Plan:

Yes, under the adopted plan and under the amendment now before the Department of Community Affairs.

Zoning ordinance link. Lilburn Zoning Ordinance 2023-603 §402-1 states that R-2 "generally corresponds to the ... Comprehensive Plan Character Area designation of 'Established Residential,'" and the §203 compatibility table maps Established Residential to R-1 and R-2. The site is within Established Residential, so R-2 is plan-consistent by the ordinance's own terms.

2024 Comprehensive Plan, printed page 35. Established Residential "is characterized by single-family houses on larger lots"; "infill parcels offer opportunities for some variety"; and "higher density development will generally not be encouraged in the area." The proposal is single-family houses at 4.34 du/ac on an infill strip: the "some variety" the plan contemplates, not the higher density it discourages. Work item H.03 (printed p. 47) directs the City to "incentivize accommodations for aging population and elements of visitability (accessible living, masters on main) within all medium and high density residential districts" — R-2 is the medium-density residential district, and every home here is one story with a zero-step entry.

2026 Comprehensive Plan Amendment — transmitted, not yet adopted. The City Council approved transmittal of the Amendment to the Georgia Department of Community Affairs at its public hearing on July 13, 2026; it has not been adopted, and adoption may occur before this case is heard [date: VERIFY]. Either way the proposal fits. The Amendment's Future Development Map places this land in "Suburban-Low," whose chart (p. 73) lists "Single-Family Cottages" and "Single-Family" as Appropriate and Mixed Use,

Multifamily, Office and Retail as Not Appropriate; the adjacent Suburban-Medium class rates both single-family categories Appropriate as well. Its policy "Do not further extend sewer in this area" is met in Phase 1, which uses the main already on the property.

(F) Whether there are other existing or changing conditions affecting the use and development of the property which give supporting grounds for either approval or disapproval of the proposed rezoning:

Several existing and changing conditions support approval.

An aging, under-served market. Census tract 504.61 is 35.5 percent aged 55 and older; ZIP 30047 has roughly 8,500 owner-householders 55 or older (ACS 2020–2024). Lilburn's only 55+ product, the Cottages at Noble Village, is sold out. Stakeholders in the 2024 plan's outreach recorded that "affordable housing for seniors is needed" (printed p. 100) and that housing is "pricing out young families and seniors are moving away" (printed p. 101). The same plan's survey found 64 percent of participants wanted more horizontal density such as cottage courts (p. 10) and, in the next sentence, that 59 percent thought Lilburn had the right amount of senior housing and needed less medium- and high-density housing. That 2023–24 survey is superseded on this point by the City's own 2026 amendment, which rates single-family cottages Appropriate here.

The City's recent decisions. The City denied a mixed-use rezoning at Arcade and Killian Hill Roads (RZ-2024-01, June 10, 2024) and approved R-2 cottage subdivisions at Annsbury Park and the Preserve at Killian Hill Phase 3. The 2025 mixed-use filing here (RZ-2025-01, 104 condominiums plus 24,400 square feet of commercial) was tabled August 28, 2025 for a defective legal advertisement, never heard, and is retired.

Infrastructure and land. An 8-inch sewer main already crosses the front of the property, and the site is in FEMA Zone X. The Killian Hill Road widening (Gwinnett SPLOST F-1262) remains at "Concept Complete" with no construction date [VERIFY]; this proposal adds under 1 percent of peak-hour traffic without relying on it. A 236-foot-wide strip with a single frontage is ill-suited to a conventional R-1 subdivision (see C) and well-suited to one lane of cottage lots behind the ordinance's widest buffer [VERIFY that the pending zoning-code rewrite does not alter R-2 cottage standards].

Attorney-review note

1. **Form versus ordinance numbering.** The city form cites "Article 10, Section 1003 of the 2011 Zoning Resolution" and "Section 1003-8"; in Lilburn Zoning Ordinance 2023-603 the rezoning criteria are §1003-7 and §1003-8 contains the Special Use Permit criteria. Confirm with the Planning Director that the six standards above are the ones staff will apply, and cite §1003-7 in the cover letter.
2. **Criterion C is conceded in part.** The response acknowledges a reasonable economic use under R-1 rather than asserting that the current zoning is confiscatory, and it rests the argument on Table 4.1's dimensional standards rather than on the §602 use table — because §602 lists the cluster-cottage use as permitted in R-1 as well as R-2, and an opponent reading the use table would otherwise say the applicant misstated the code. Confirm this is the intended posture: it forgoes a takings-type argument in exchange for accuracy on the face of the ordinance. If counsel wishes to preserve a constitutional challenge under Georgia law, the required written notice and specificity must be added to the application before the first hearing [VERIFY current Georgia requirements with counsel].
3. **Sworn statements.** The form is attached to notarized certifications. Every number above is drawn from FACTS.md, data/layout.json, data/plans.json, the 2026-09-03 re-verification audits in audit-2026-09-03/ and docs/11-site-context-brief.md; items marked VERIFY (2025 school-study figures, LUC 210 rate, right-of-way width, Killian Hill project status, zoning-code rewrite, Comprehensive Plan Amendment adoption date, pricing) should be confirmed or removed before signature.
4. **Consistency.** The unit count (41), density (4.34 du/ac on 9.44 acres), the buffer statement (20 feet on all three shared lines with the single reduction to 18 feet at the entrance curb return, held in a recorded easement within lots under §313(1)), and the voluntary conditions must match the Letter of Intent, the Development Summary and the site plan word for word; re-run tools/check_docs.py after any edit.
5. **The §313(1) reading is an interpretation, not settled law.** §313(1) speaks of "buffer requirements established by this article," and Article 3 sets no buffer widths. Counsel should be ready for staff to require the buffer in a separate tract, in which case the concurrent §1005 lot-depth variance and the 50-by-82-foot fallback layout are the answer.
6. **Conflict-of-interest disclosure** (O.C.G.A. §36-67A) must be filed within 10 days of filing; it is a separate form and is not addressed here.

Sources: Lilburn Zoning Ordinance 2023-603 §§203, 313, 402, 602, 1003, Tables 4.1 and 4.2; City of Lilburn Rezoning Application form, p. 3 of 6; Lilburn 2024 Comprehensive Plan pp. 10, 35, 47, 100, 101; 2026 Comprehensive Plan Amendment (draft of

6/16/2026 transmitted 7/13/2026) pp. 52–54, 71, 73; Gwinnett Tax Assessor 2026 digest (data/owners-found.json); Gwinnett County GIS zoning, sewer, stream and floodplain layers (2026-08-28); ITE Trip Generation Manual, 11th ed., LUC 251 and 210; Gwinnett DOT Traffic Impact Study Guidelines (2023) and Criteria and Guidelines for Left Turn Lanes (2007) Table 1; Gwinnett County Unified Development Ordinance §900-40.4 Table 900.2 and §900-40.5 Table 900.3; Gwinnett DWR Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions (rev. 9/2018); IFC 2024 as adopted and modified by Ga. Comp. R. & Regs. 120-3-3-.04, Appendix D103.4 and D107.1; 42 U.S.C. §3607(b)(2)(C) and 24 CFR §100.300–.308; ACS 2020–2024; RZ-2025-01 packet (Letter of Intent 2025-07-29, School Impact Analysis July 2025, PC minutes 2025-08-28); RZ-2024-01 Council minutes 2024-06-10; Gwinnett DOT SPLOST program (May 2024); site-plan data data/layout.json (41 lots, corrected 2026-09-03) and data/plans.json.

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